

SENATE BILL 1927

By Massey

AN ACT to amend Tennessee Code Annotated, Title 55,
relative to intelligent speed assistance devices.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. This act is known and may be cited as the "Super Speeder Accountability Act."

SECTION 2. Tennessee Code Annotated, Title 55, Chapter 10, is amended by adding the following as a new part:

55-10-901. Legislative findings – Purpose – Applicability.

(a) The general assembly finds that:

- (1) Excessive speeding is a leading cause of traffic fatalities and injuries;
- (2) Speeding drivers negatively impact all who use the road, including pedestrians, bicyclists, motorcyclists, and other forms of transportation;
- (3) Intelligent speed assistance (ISA) devices offer an improved solution to address excessive speeding;
- (4) Tools utilized to reduce speeding on roadways often include issuing traffic fines, suspending licenses, and impounding cars, but these solutions are no longer effective to address excessive, repeated speeding;
- (5) Traffic fines do not substantially deter speeding or change behavior, and most drivers with a suspended or revoked license continue to drive;
- (6) ISA technology enables individuals to continue driving, issues a meaningful penalty, and facilitates driver education and training to create safer driving habits; and

(7) Utilizing ISA devices for high-risk drivers, particularly those with repeated speed-related violations, can prevent recidivism and provide long term traffic safety improvements.

(b) The purpose of this part is to enhance highway safety, promote safer driving habits, and keep the public safe on the road by leveraging technology that enables individuals to continue driving, while preventing speeding.

(c) This part applies only to noncommercial driver licenses and motor vehicles.

55-10-902. Definitions.

As used in this part:

(1) "Department" means the department of safety;

(2) "Excessive speeding" means:

(A) Traveling at ten miles per hour (10 mph) or greater in excess of the posted speed limit, if the posted speed limit is forty miles per hour (40 mph) or less; or

(B) Traveling at twenty miles per hour (20 mph) or greater in excess of the posted speed limit, if the posted speed limit is greater than forty miles per hour (40 mph);

(3) "In writing" means either by written electronic communication or by written physical communication;

(4) "Intelligent speed assistance device" or "ISA device":

(A) Means an aftermarket device that:

(i) Uses location-based technology to actively limit a motor vehicle's speed to posted or pre-set speed limits; and

(ii) Is tamper-resistant and capable of reporting attempts to disable or circumvent functionality; and

(B) Does not include technology that is provided by a motor vehicle manufacturer as a component of a new motor vehicle and that controls or affects the speed of a motor vehicle;

(5) "ISA device provider" or "provider" means a provider that is licensed by the department pursuant to § 55-10-906;

(6) "ISA device usage period" means a three-hundred-sixty-five-consecutive-day period or the entire period of the person's driver license suspension or revocation, whichever is longer;

(7) "Manufacturer" means an individual or entity responsible for the design, construction, or production of an ISA device that has been approved by the department as meeting all of the minimum requirements set forth in the ISA device program rules;

(8) "Permanent revocation" means the indefinite revocation of a provider's license or ability to perform the actions authorized under this part;

(9) "Service center" means an entity designated by the manufacturer and approved by the department to provide services, including installation, inspection, maintenance, and removal of an ISA device within this state;

(10) "Speeding offender" or "offender" means:

(A) A person whose driver license has been revoked pursuant to § 55-50-501 due to conviction, or forfeiture of bail not vacated, upon two (2) charges of reckless driving under § 55-10-205 committed within a period of twelve (12) months where speed was a factor in each violation;

(B) A person whose driver license has been revoked pursuant to § 55-50-501 due to a conviction for reckless endangerment by vehicle in violation of § 39-13-103 where speed was a factor;

(C) A person whose driver license has been revoked pursuant to § 55-10-503 for drag racing in violation of § 55-10-502;

(D) A person whose driver license has been suspended or revoked pursuant to § 55-50-502(a)(1)(C) due to frequent convictions for excessive speeding or moving traffic violations where speed was a factor;

(E) A person who is eighteen (18) years of age or older whose driver license has been suspended pursuant to § 55-50-505 due to a conviction for excessive speeding that contributed to the accumulation of twelve (12) or more points within a twelve-month period; or

(F) A person who is less than eighteen (18) years of age whose driver license has been suspended pursuant to § 55-50-505 due to a conviction for excessive speeding that contributed to the accumulation of six (6) or more points within a twelve-month period;

(11) "Subcontractor" means an individual or entity, other than a service center or technician, seeking to provide intermediary services for a manufacturer, including opening and managing service centers and installing and monitoring ISA devices;

(12) "Technician" means a person affiliated with a service center and engaged in the installation, inspection, maintenance, and removal of ISA devices in this state; and

(13) "Temporary suspension" means the partial or full removal of a provider's license or ability to perform the actions authorized in this part, for a period of not more than one (1) year.

55-10-903. Mandatory use of ISA devices.

(a)

(1) Upon application for a restricted license by a speeding offender who is not otherwise prohibited from having a restricted license, the court shall order the installation and use of an ISA device for the ISA device usage period. The consecutive-day requirement must commence on the date of ISA device installation; provided, that the offender applies for the offender's restricted license within ten (10) days of the issuance of a court order authorizing a restricted license. If the offender does not have a court order or does not apply within ten (10) days, then the ISA device usage period must commence on the date of issuance of the driver license with ISA device restrictions.

(2) The department shall not reinstate a driver license to a speeding offender who did not apply for a restricted driver license during the period of license suspension or revocation until the offender shows the department proof of a current ISA device installation. Upon proof being shown and the driver license reinstated with ISA device restrictions, the ISA device usage period must commence on the date the license is reinstated and must continue for the full ISA device usage period that matches the offender's license suspension or revocation period until compliance has been established as required in this part.

(b) A speeding offender required to operate only a motor vehicle that is equipped with an ISA device pursuant to subsection (a) shall bear the cost of leasing, installing, removing, monitoring, and maintaining the ISA device, unless determined to be indigent and qualified to apply for assistance to meet the requirement pursuant to § 55-10-419.

(c) The procedural provisions and restrictions of §§ 55-10-417(c)–(e) and the electronic monitoring indigency fund and indigency provisions of § 55-10-419 apply when a speeding offender is required to operate only a motor vehicle that is equipped with an ISA device pursuant to subsection (a).

55-10-904. Program administration.

The department shall establish procedures for:

- (1) Notifying speeding offenders of ISA device requirements;
- (2) Verifying installation and functionality of ISA devices; and
- (3) Monitoring compliance and responding to violations.

55-10-905. Administrative fee.

An ISA device provider shall charge to, and collect from, each speeding offender required to use an ISA device an annual administrative fee of twelve dollars and fifty cents (\$12.50). The proceeds of the fee must be transmitted to the department and must be used to fund the administrative costs of implementing compliance-based ISA device use, pursuant to § 55-10-907.

55-10-906. Compliance-based ISA device services – Provider licenses.

(a) A manufacturer, service center, technician, or subcontractor must be licensed by the department in order to provide compliance-based ISA device services under this part.

(b)

(1) The department shall establish the requirements for each license category by rule pursuant to the Uniform Administrative Procedures Act, compiled in title 4, chapter 5. A manufacturer, service center, technician, or subcontractor must apply to the department for a license to operate in this state. The application must be on a form published by the department and must be accompanied by the fee set by the department under subdivision (b)(2).

(2) The department may impose an initial application fee not to exceed two hundred fifty dollars (\$250) and a renewal application fee not to exceed one hundred fifty dollars (\$150). Fees paid under this subsection (b) must only be

used to fund the ISA device program within the department. Fee amounts must be established by rules promulgated pursuant to the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

(c) If an applicant meets the requirements for the license type for which the applicant applied, then the department must issue the applicant a license valid for one (1) year.

(d)

(1) The department may temporarily suspend or permanently revoke a license, either in whole or in part, of a licensee who violates this part or rules promulgated by the department. Temporary suspension or permanent revocation may include, but is not limited to, prohibiting the licensee from:

(A) Performing new installations of ISA devices; and

(B) Opening any new service centers.

(2) If a license is permanently revoked, then the department may require the licensee to pay for the licensee's existing customers to transition to a new ISA device, regardless of manufacturer.

(e)

(1) An individual or entity may seek administrative review of the department's denial of an initial application, denial of a renewal application, temporary suspension, or permanent revocation.

(2) In order to seek administrative review under this subsection (e), the individual or entity must submit the request for review in writing to the department. The request for review under this subsection (e) must include the individual's or entity's reasoning for the request and supporting documentation.

The department shall forward the request to the colonel of the highway patrol or the colonel's designee for review and a final determination.

(3) The colonel or the colonel's designee shall review the department's records regarding the individual or entity and the supporting documentation provided by the individual or entity, and render a determination in writing within thirty (30) business days of the department's receipt of the request.

(4) Following the determination, the individual or entity may seek judicial review of the decision of the colonel or the colonel's designee as provided by § 4-5-322.

55-10-907. Penalties for noncompliance – Authorized removal – Compliance.

(a) A speeding offender shall not:

(1) Tamper with the ISA device or any components of the ISA device, or otherwise circumvent the ISA device or its components;

(2) Remove or cause the removal of the ISA device from the motor vehicle, except for necessary maintenance, replacement, or repair as determined by the department;

(3) Have, direct, authorize, or request another person to tamper with the ISA device or any components of the ISA device, or otherwise circumvent the ISA device or its components;

(4) Operate a motor vehicle that is not equipped with an ISA device when the offender is required by § 55-10-903 to only operate a vehicle equipped with an ISA device;

(5) Fail to appear at the ISA device provider when required for monitoring or inspection of the ISA device; or

(6) Fail to return the ISA device to the ISA device provider upon program completion.

(b) Except as otherwise provided in § 55-10-908, the offender must maintain the ISA device in working order for the ISA device usage period.

(c) Failure to comply with subsection (a) or (b) must result in the extension of the ISA device usage period by one hundred twenty (120) days during which the offender must remain in compliance with subsections (a) and (b) in order to avoid an additional extension.

(d) An ISA device provider providing an ISA device to an offender pursuant to this part shall report to the department any evidence of the offender's:

(1) Tampering with, circumventing, or removing an ISA device or its components; and

(2) Failure to abide by the terms or conditions ordered by the court, including failing to appear for scheduled monitoring or inspection visits.

(e) The authorized removal of an ISA device that is required by § 55-10-903 must be compliance-based in accordance with subsection (f).

(f)

(1)

(A) Upon completion of the ISA device usage period, the offender shall take the motor vehicle to an ISA device provider for a final download of the offender's data file and a determination as to whether the offender has successfully completed the ISA device usage period without a violation of subsection (a) or (b).

(B) The provider must send the data file from the offender's final download to the department within two (2) business days.

(C) If the offender has successfully completed the ISA usage period without a violation of subsection (a) or (b), then the provider must issue a compliance determination form to the offender. If the offender has not successfully completed the ISA device usage period without a violation of subsection (a) or (b), then the provider must notify the offender of noncompliance and the resulting extension of the ISA device requirement on the compliance determination form. The provider must use the compliance determination form published by the department.

(D) If the provider issues a certificate of compliance, then the department must issue an ISA device removal form authorizing the removal of the ISA device restrictions from the offender's driver license and the removal of the device from the offender's motor vehicle; provided, that the department's review of the offender's records indicates the offender has been in compliance during the ISA device usage period.

(E) The offender may take the removal form to a driver services center and apply for the removal of the ISA device requirements and reinstatement of the offender's driver license or the issuance of a photo identification license. If the offender meets all requirements for driver license reinstatement and pays all reinstatement fees, then the department must reinstate the driver license.

(F) If the provider notifies the offender that the provider's records indicate the offender has not complied with the conditions in subsections (a) and (b) during the required periods, then the offender may either accept the extension of the ISA device requirement or request that the provider reconsider the finding of noncompliance and consider evidence

of compliance provided by the offender. If the provider confirms the finding of noncompliance, then the offender may either accept the extension of the ISA device requirement or request an administrative compliance review by the department pursuant to subdivision (f)(2).

(2)

(A) An offender who has had the offender's ISA device usage period extended by a provider may request, in writing, an administrative compliance review by the department. Any evidence of compliance the offender intends to present to the department must be included with the written request.

(B) The department shall review the request, including any evidence provided by the offender and the records provided by the provider, within thirty (30) days of receiving the request. Following the department's review, the department shall notify the offender and the provider of the department's determination in writing.

(C) If the department determines that the offender was in compliance with subsections (a) and (b), then the department shall issue an ISA device removal form.

(D) If the department determines that the offender was not in compliance for the required periods, then the department shall inform the offender of the determination in writing. The offender may seek judicial review of the department's administrative compliance review determination as provided by § 4-5-322.

(3) When removing an ISA device, an ISA device provider may in good faith rely on an offender's ISA device removal form that removal of the device is lawful.

55-10-908. Tolling of period in which ISA device is required.

(a) This section applies to a speeding offender required to have an ISA device installed on the offender's vehicle under § 55-10-903 when that vehicle is unable to be operated due to:

(1) Damage from an accident or other uncontrollable circumstance where the speed of the offender's vehicle was not a proximate cause; or

(2) Repairs based on normal wear and tear of a vehicle or due to a recall.

(b) An offender whose vehicle is unable to be operated under subsection (a) may request the department toll the required consecutive ISA device usage period, beginning on the date of the incident that led to the vehicle being unable to be operated, by submitting proof to the ISA device provider that the vehicle was inoperable as the result of the vehicle being involved in a traffic crash, the vehicle is being repaired, or other uncontrollable circumstance through no fault of the offender required to have the ISA device.

(c)

(1) If the vehicle was in an accident and a law enforcement agency issued a crash report, the crash report must be submitted to the provider.

(2) Other proof may consist of, but is not limited to:

(A) A written statement from the insurance company regarding repairs;

(B) A written statement from a repair shop showing the damage being repaired and the estimated time of completion for repairs; or

(C) Other documentation acceptable to the department.

(d) The ISA device provider shall forward the request and documentation to the department within five (5) business days of receipt.

(e) The department shall notify the offender and the ISA device provider in writing, if the tolling period has been granted or denied, and, if denied, the reason for the denial.

(f) If granted, a tolling period is for thirty (30) days. At the end of the thirty-day period, if the vehicle is still unable to be operated and the offender cannot have an ISA device installed on a different vehicle, the offender shall submit additional proof, as specified in subsection (c), to the department showing the vehicle is still undergoing repairs or inoperable due to another acceptable reason that the ISA device cannot be installed on a different vehicle. The department shall notify the offender and the ISA device provider in writing, if any additional toll period has been granted or denied, and, if denied, the reason for the denial.

(g) At the end of any thirty-day tolling period, if no new request has been submitted and granted, then the ISA device usage period must resume with the offender being required to maintain an ISA device for the period of time that was remaining on the day the tolling period began.

(h) The tolling period in this section does not relieve an offender from the requirement to only operate a vehicle that is equipped with an ISA device.

(i)

(1) An offender aggrieved by the denial of a request to have the ISA usage period tolled under this section may, within ten (10) business days of the date of the denial, request a review by the commissioner or the commissioner's designee. The request for review must include copies of the proof submitted to

the department, the denial letter from the department, and any information showing why the offender believes the denial was incorrect.

(2) The commissioner or the commissioner's designee shall, within ten (10) business days of receiving the request for review, make a determination in writing, based on information in the department's records and the information provided by the offender requesting the review, whether or not the thirty-day tolling period should be granted.

(3) The request for review stays the continuation of the ISA device usage period until the commissioner or commissioner's designee's ruling is issued.

(4) An offender may appeal the commissioner or commissioner's designee's ruling pursuant to § 4-5-322.

55-10-909. Data confidentiality.

All documents, records, identifying information, monitoring data or results, and other information recorded, collected, maintained, transmitted, or stored by an ISA device provider about or concerning a speeding offender is confidential and not available for public inspection. All such information must remain confidential when it is transmitted, electronically or otherwise, maintained and stored, examined, or used by a monitoring authority. Only authorized employees of an ISA device provider or monitoring authority may view any document made confidential by this section.

55-10-910. Nonresidents.

(a) A nonresident, as defined in § 55-50-102, who is required to install and maintain an ISA device pursuant to § 55-10-903 may request a waiver developed by the department to be completed by the nonresident's home state. Upon acceptance of the completed waiver by the department, the ISA device installation requirement must be waived.

(b) If at any time the nonresident becomes a resident, as defined in § 55-50-102, of this state, then the resident must comply with the requirements of this part and the ISA device usage period must commence on the date of driver license issuance with proof that an ISA device has been installed on the motor vehicle.

55-10-911. Liability clarifications.

(a) A manufacturer, distributor, or retailer of a motor vehicle is not liable for any loss, injury, or damages caused by the design, manufacture, installation, improper installation, use, or misuse of an ISA device. A manufacturer, distributor, or retailer of a motor vehicle is liable if the manufacturer, distributor, or retailer knowingly engages in a repair or update to the ISA device and the repair or update proximately causes loss, injury, or damage.

(b) This part does not require a manufacturer, distributor, or retailer of a motor vehicle to manufacture, distribute, or offer for sale a motor vehicle that includes or is compatible with an ISA device.

(c) This part does not prohibit a lessor or lienholder from requiring that a motor vehicle lessee or owner notify the lessor or lienholder that an ISA device has been installed on a motor vehicle that is subject to a lease or finance agreement.

55-10-912. Reporting.

The department, beginning February 1, 2028, and thereafter annually, on or before February 1, shall report in writing to the transportation and safety committee of the senate and the committee of the house of representatives having jurisdiction over transportation matters the number of speeding offenders who have, in the previous year, had installed on their motor vehicles ISA devices, and which circumstance listed in § 55-10-902(10)(A)-(F) required the use of each device. The department shall also include in the report a summary of recidivism rates and ISA device user compliance.

55-10-913. Rulemaking.

The department is authorized to promulgate rules to implement this part in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 3. Tennessee Code Annotated, Section 55-10-419(a)(1), is amended by deleting the language "or global positioning monitoring device" and substituting instead the language "global positioning monitoring device, or intelligent speed assistance device as defined in § 55-10-902".

SECTION 4. Tennessee Code Annotated, Section 55-10-419(a)(2)(B), is amended by inserting the language "§ 55-10-903," immediately after the language "§ 55-10-402(h)(7),".

SECTION 5. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 6. For the purposes of promulgating forms and rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect January 1, 2027, the public welfare requiring it, and applies to violations occurring on or after that date.